

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #01	CCRB Case #: 201808095	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/19/2018 1:25 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 3/19/2020	Precinct: 120
Date/Time CV Reported Wed, 09/19/2018 2:35 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/01/2018 11:12 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Browne	00352	950113	GANG SI
2. SGT Michael Dicecco	03303	903799	GANG SI
3. POM Gary Leite	27464	948376	GANG SI

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Dicecco	Abuse: Sergeant Michael Dicecco stopped § 87(2)(b) [REDACTED]	A . Exonerated
B . POM Gary Leite	Abuse: Police Officer Gary Leite frisked § 87(2)(b) [REDACTED]	B . Exonerated
C . POM Gary Leite	Force: Police Officer Gary Leite used physical force against § 87(2)(b) [REDACTED]	C . Exonerated
D . POM Gary Leite	Abuse: Police Officer Gary Leite searched § 87(2)(b) [REDACTED]	D . Exonerated
E . POM Gary Leite	Force: Police Officer Gary Leite used physical force against § 87(2)(b) [REDACTED]	E . Unfounded
F . POM Richard Browne	Force: Police Officer Richard Browne used physical force against § 87(2)(b) [REDACTED]	F . Unfounded
G . SGT Michael Dicecco	Discourtesy: Sergeant Michael Dicecco spoke discourteously to § 87(2)(b) [REDACTED]	G . Unfounded
H . SGT Michael Dicecco	Off. Language: Sergeant Michael Dicecco made remarks to § 87(2)(b) [REDACTED] based upon race.	H . Unfounded

Case Summary

On September 19, 2018, § 87(2)(b) filed this complaint over the phone with IAB on behalf of his brother, § 87(2)(b). IAB forwarded this complaint to the CCRB where it was received on October 1, 2018. § 87(2)(g)

On September 19, 2018, at approximately 1:25 p.m., § 87(2)(b) § 87(2)(b) was riding a bike on the sidewalk at the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island when Sgt. Michael DiCecco, PO Gary Leite, and PO Richard Browne, all from the Staten Island Gang Squad, stopped § 87(2)(b) (**Allegation A: Abuse of Authority, exonerated**). PO Leite frisked § 87(2)(b) backpack (**Allegation B: Abuse of Authority, exonerated**). PO Leite knelt § 87(2)(b) (**Allegation C: Force, exonerated**). PO Leite searched the backpack and recovered a firearm (**Allegation D: Abuse of Authority, exonerated**). § 87(2)(b) was handcuffed and placed into the police vehicle for transport to the 120th Precinct stationhouse. In the car, § 87(2)(b) alleged that PO Leite slapped him (**Allegations E: Force, unfounded**). PO Browne allegedly punched § 87(2)(b) (**Allegation F: Force, unfounded**). Sgt. DiCecco allegedly called him a “stupid kid” and a “nigger” (**Allegations G-H: Discourtesy, Offensive Language, unfounded**). § 87(2)(b) was arrested for § 87(2)(b).

§ 87(2)(b) provided a cell phone video taken by a witness, who § 87(2)(b) refused to identify (Board Review 01). Sgt. DiCecco, PO Leite, and PO Browne were not equipped with body-worn cameras at the time of incident.

IAB conducted a concurrent investigation which was closed on October 15, 2018 (Board Review 02, 03). None of the allegations were substantiated.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Michael DiCecco stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was riding a bicycle on the sidewalk at the time of incident.

According to New York Vehicle and Traffic Law § 509, no person shall operate a motor vehicle upon any sidewalk (Board Review 04). Every person riding a bicycle shall be subject to all of the duties applicable to the driver of a vehicle, New York Vehicle and Traffic Law § 1231 (Board Review 05).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Abuse of Authority: Police Officer Gary Leite frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Gary Leite searched § 87(2)(b)

PO Leite acknowledged that he frisked and searched § 87(2)(b) backpack.

Sgt. DiCecco testified that, prior to engaging § 87(2)(b) he received a phone call from Sgt. Melendez, from Staten Island Narcotics § 87(2)(e)

§ 87(2)(b) Sgt. DiCecco did not recall if Sgt. Melendez provided additional description about § 87(2)(b) or his backpack. Sgt. DiCecco believed he could identify § 87(2)(b) because Sgt. DiCecco had seen § 87(2)(b) around the neighborhood prior to this incident. Sgt. DiCecco did not recall if he had any interaction with § 87(2)(b) in the past. The officers proceeded to the § 87(2)(b) where they observed § 87(2)(b) carrying a backpack and riding a bicycle in the courtyard, § 87(2)(e) Sgt. DiCecco recognized § 87(2)(b) Sgt. DiCecco knew that § 87(2)(b) was a member of the gang, “§ 87(2)(b),” and that he had a history of carrying firearms. Sgt. DiCecco intended to stop § 87(2)(b) and conduct an investigation to determine if § 87(2)(b) was in possession of a firearm. As § 87(2)(b) rode his bicycle toward the officers on the sidewalk, Sgt. DiCecco, PO Leite, and PO Brown exited the police vehicle and verbally identified themselves as police officers. Sgt. DiCecco stood in § 87(2)(b) path causing § 87(2)(b) to ride into Sgt. DiCecco’s outstretched hands. Sgt. DiCecco held onto § 87(2)(b) hands to keep § 87(2)(b) from reaching for a weapon.

PO Leite testified that he took hold of § 87(2)(b) backpack and felt a hard, metal object (Board Review 10). After § 87(2)(b) was handcuffed, PO Leite opened the compartment that contained the object and confirmed that the object was a loaded firearm.

The property invoice associated with this arrest indicated that the officers recovered a .40 caliber Taurus International pistol, one magazine, and 13 cartridges (Board Review 12).

A person is guilty of criminal possession of a weapon when he or she knowingly possesses any firearm, New York Penal Law § 265.01 (Board Review 13).

The “fellow officer rule” states that a police officer is allowed to rely upon the information provided by a fellow officer and need not have personal knowledge of said information, People v. Clark, 216 A.D.2d 919 (Board Review 14).

According to People v. De Bour, 40 N.Y.2d 210, an officer has the authority to frisk an individual if the officer reasonably suspects that he is in danger of physical injury by virtue of the individual being armed (Board Review 06). People v. Williams, 111 A.D.3d 448, found that an officer was justified in removing a pistol from the defendant’s waistband after making contact with the weapon during a lawful frisk (Board Review 15).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation (C) Force: Police Officer Gary Leite used physical force against § 87(2)(b)

§ 87(2)(b) stated that officers grabbed his arms, stopped him and told him not to move. He “struggled” against the officers and “shook loose” from the officers’ grip (Board Review 07-08). PO Leite subsequently knelt § 87(2)(b) in the testicles which caused § 87(2)(b) to fall onto the ground. § 87(2)(b) did not sustain any injuries.

PO Leite testified that he told § 87(2)(b) to show his hands and get on the ground (Board Review 10). § 87(2)(b) did not comply and instead resisted the officers by swinging his arms and moving his body. Sgt. DiCecco held § 87(2)(b) around his shoulders. § 87(2)(b) moved forward in an attempt to escape. The officers told § 87(2)(b) to stop resisting, but he continued to struggle with the officers. PO Leite struck § 87(2)(b) with his knee in § 87(2)(b) lower abdomen once, and § 87(2)(b) fell to the ground. This enabled officers to handcuff § 87(2)(b) who then stopped resisting.

§ 87(2)(g) both officers stated that § 87(2)(b) resisted arrest by swinging his arms and moving his body despite the officers’ commands (Board Review 09, 11).

The 42 second cell phone video showed Sgt. DiCecco holding § 87(2)(b) around the shoulders while PO Leite and PO Browne were on either side of § 87(2)(b) (Board Review 01). § 87(2)(b) held his hands in front of his body. It was unclear if the officers issued any commands to § 87(2)(b). PO Leite struck § 87(2)(b) with his knee once. It was unclear where PO Leite’s knee made contact on § 87(2)(b) body. § 87(2)(b) grabbed his crotch and squatted down. PO Leite said, “Show me your hands.” The video ends before the officers handcuff § 87(2)(b).

NYPD Patrol Guide Procedure 221-01 permits officers to use the reasonable force necessary to gain control or custody of a subject, given the actions taken by the subject, whether the subject is actively resisting custody, and the subject’s violent history (Board Review 16).

§ 87(2)(g)
Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation (E) Force: Police Officer Gary Leite used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Richard Browne used physical force against § 87(2)(b)

Allegation (G) Discourtesy: Sergeant Michael DiCecco spoke discourteously to § 87(2)(b)

Allegation (H) Offensive Language: Sergeant Michael DiCecco made remarks to § 87(2)(b)
based upon race.

On September 27, 2019, § 87(2)(b) testified to the CCRB that once he was handcuffed, officers placed him in the rear passenger seat of the police vehicle (Board Review 07, 08). One officer sat next to § 87(2)(b) one sat in the front passenger seat, and the third sat in the driver's seat. The officer in the front passenger seat, who § 87(2)(b) described as a 5'7" or 5'8" dark haired heavyset white male in his 40s, turned around in his seat and slapped § 87(2)(b) on the left side of the face. § 87(2)(b) stated that this was the same officer who searched his backpack earlier. Thenthe officer next to § 87(2)(b) a heavyset white male, punched § 87(2)(b) on his back and in his rib cage multiple times. The officer driving the vehicle, a white male, called § 87(2)(b) a "stupid kid" and a "nigger." § 87(2)(b) did not sustain any injuries from being slapped or punched. § 87(2)(b) did not seek any medical treatment. § 87(2)(g) in his statement to IAB, provided the same day as his arrest, § 87(2)(b) alleged that the heavyset bald officer punched him three times on the left side of his face. § 87(2)(b) did not allege any force in the vehicle, beyond the punches to the face, and did not allege any discourteous or offensive language.

§ 87(2)(b) arrest photo does not show any swelling, redness, or other facial injury (Board Review 24).

According to the MOS pedigree sheets, PO Leite is a § 87(2)(b) -old white male who is § 87(2)(b) with brown hair, blue eyes, and an average build. PO Browne is a § 87(2)(b) -old white male § 87(2)(b) with brown eyes, a heavy build, and is bald. Sgt. DiCecco is a § 87(2)(b) -old white male § 87(2)(b) with brown hair, hazel eyes, and an average build (Board Review 17, 18).

Sgt. DiCecco, PO Leite, and PO Browne all denied slapping and punching § 87(2)(b) (Board Review 09, 10, 11). They all denied witnessing any officer slap or punch § 87(2)(b)

PO Browne testified that he sat in the rear with § 87(2)(b) and that he did not recall where his partners were seated at the time (Board Review 11).

PO Leite testified that he did not recall if he sat in the front passenger seat or in the rear with § 87(2)(b) (Board Review 10). Sgt. DiCecco drove the vehicle.

Sgt. DiCecco stated that he sat in the front passenger seat of the vehicle and that he did not recall where his partners were seated (Board Review 09). Sgt. DiCecco stated that whoever drove the car prior to this incident would have been the driver back to the stationhouse.

None of the officers' memo book entries from the incident date note which officer was the operator of the vehicle (Board Reviews 19).

§ 87(2)(g)
It is therefore recommended that
Allegations E, F, G, and H be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and was named as a victim in four allegations (Board Review 20):
 - § 87(2)(b)
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- § 87(2)(b) has been party to two CCRB complaints and was named as a victim in five allegations (Board Review 20):
 - § 87(2)(b)
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- Sgt. Michael DiCecco has been a member of service for 26 years and has been a subject in 18 CCRB complaints and 53 allegations, of which 13 were substantiated (Board Review 21):
 - 201501137 involved a substantiated allegation of search of person against Sgt. DiCecco. The Board Recommended Formalized Training, and the NYPD imposed Formalized Training.
 - 201507960 involved substantiated allegations of refusal to provide name and shield and interference with recording device. The Board recommended Formalized Training, and the NYPD imposed Formalized Training.
 - 201508097 involved substantiated allegations of premises entered and person stopped. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
 - 201603474 involved substantiated allegations of refusal to provide name and shield, stop and search of person, strip search, threat of arrest, discourteous word, and offensive language based on gender. The Board recommended charges, and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- PO Gary Leite has been a member of service for 10 years and has been a subject in seven CCRB complaints and 17 allegations, of which two were substantiated (Board Review 21):
 - 201212775 involved a substantiated allegation of discourteous word. The Board recommended Command Discipline, and the NYPD imposed Command Discipline A.
 - 201603474 involved a substantiated allegation of a stop. The Board recommended Formalized Training, and the NYPD imposed Formalized Training.
 - § 87(2)(g)

- § 87(2)(g)

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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